

they are needed or who do not act to implement decisions when they are made do not fully and faithfully perform the duties of their offices.⁷ Implicit in the idea that officials have some immunity—absolute or qualified—for their acts, is a recognition that they may err. The concept of immunity assumes this and goes on to assume that it is better to risk some error and possible injury from such error than not to decide or act at all. In *Barr v. Matteo*, 360 U. S. 564, 572–573 (1959), the Court observed, in the somewhat parallel context of the privilege of public officers from defamation actions: “The privilege is not a badge or emolument of exalted office, but an expression of a policy designed to aid in the effective functioning of government.” See also *Spalding v. Vilas*, 161 U. S., at 498–499.

For present purposes we need determine only whether there is an absolute immunity, as the Court of Appeals determined, governing the specific allegations of the complaint against the chief executive officer of a State, the senior and subordinate officers and enlisted personnel of that State’s National Guard, and the president of a state-controlled university. If the immunity is qualified,

⁷ For example, in *Floyd v. Barker*, *supra*, Coke emphasized that judges “are only to make an account to God and the King” since a contrary rule “would tend to the scandal and subversion of all justice. And those who are the most sincere, would not be free from continual calumniation . . .” 12 Co. Rep., at 25, 77 Eng. Rep., at 1307. See also *Yaselli v. Goff*, 12 F. 2d 396, 399 (CA2 1926), *aff’d per curiam*, 275 U. S. 503 (1927). In *Spalding v. Vilas*, 161 U. S., at 498, the Court noted:

“In exercising the functions of his office, the head of an Executive Department, keeping within the limits of his authority, should not be under an apprehension that the motives that control his official conduct may, at any time, become the subject of inquiry in a civil suit for damages. It would seriously cripple the proper and effective administration of public affairs as entrusted to the executive branch of the government, if he were subjected to any such restraint.”